IN THE NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHI COURT III

Item No. 02
CA.CAA-34(ND)/2023

IN THE MATTER OF:
Kolmeks (Gujarat) Manufacturing Pvt Ltd. AND Their Respective Shareholders & Creditors

.....APPLICANT/PETITIONER

SECTION
U/s 230/232

Order Pronounced on 12.07.2023

CORAM:
SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

Order pronounced in open court vide separate sheets. CA.CAA-34(ND)/2023 is **allowed.**

Sd/-

(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

Sd/-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

BEFORE THE NATIONAL COMPANY LAW TRIBUNAL
COURT NO. III, NEW DELHI

CA (CAA)- 34/(ND)/2023

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

In the matter of Scheme of Amalgamation of

KOLMEKS INDIA PRIVATE LIMITED

(Applicant Company-1 /Transferor Company)

WITH

KOLMEKS (GUJARAT) MANUFACTURING PRIVATE LIMITED

(Applicant Company-2/Transferee Company)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

CORAM:

SH. BACHU VENKAT BALRAM DAS, HON'BLE MEMBER (JUDICIAL)

SH. ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

1. M/S KOLMEKS INDIA PRIVATE LIMITED

Company registered under the Companies Act, 2013 having its Registered Office at**:**
Unit No. 404, 4th Floor,
DLF Courtyard, DLF Place,
District Centre, Saket,
New Delhi-110017

...Transferor Company/Applicant Company-1

WITH

2. M/S KOLMEKS (GUJARAT) MANUFACTURING PRIVATE LIMITED

Company registered under the Companies Act, 2013 having its Registered Office at**:**
Unit No. 404, 4th Floor,
DLF Courtyard, DLF Place,
District Centre, Saket,
New Delhi-110017

...Transferee Company/Applicant Company-2

Order Delivered on: 12.07.2023

For the Applicant : Adv. Yashoaj Guglani, Mr. Manish Gupta, CS Mr. Saurabh Agarwal, Mr. Sachay, CS, Mr. Narender Thakur, CS

For the Respondent :

O R D E R

Per- ATUL CHATURVEDI, MEMBER, (TECHNICAL)

1. This application (CA (CAA)-34(ND)/2023) have been jointly filed by the applicant companies herein, Kolmeks India Private Limited ("Transferor Company-1") with Kolmeks (Gujarat) Manufacturing Private Limited ("Transferee Company-2")under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed between the applicants.

2. Affidavits in support of the above applications have been sworn by Mr. Rohit Kapur, Director of Transferor Company No. 1 and Mr. Rohit Kapur, Director of the Transferee Company being the authorized signatory of the Applicant Companies, who have been authorized vide board resolutions dated 17.01.2023 for all the Applicant Companies and have been duly filed, along with the application.

3. The Applicant Company No. 1/Transferor Company – kolmeks India Private Limited bearing Corporate Identification No(CIN): U28112DL2016FTC309549 was incorporated under the provisions of the Companies Act, 2013, as a private limited company vide Certificate of Incorporation dated 22.12.2016, having its registered office at Unit No. 404, 4th Floor, DLF Courtyard, DLF Place, District Centre, Saket, New Delhi-110017. The Authorized Share Capital of the Applicant Company No. 1 is Rs. 8,50,00,000/- (Rupees Eight Crore Fifty Lakhs Only) divided into 85,00,000 (Eighty-Five Lakhs) equity shares of Rs. 10/- (Rupees Ten) each. The Issued, Subscribed and Paid-up Share Capital of the Company is Rs. 8,36,97,920/-(Rupees Eight Crore Thirty-Six Lakhs Ninety-Seven Thousand Nine Hundred Twenty Only) divided

into 83,69,792 (Eighty-Three Lakhs Sixty-Nine Thousand Seven Hundred Ninety-Two) equity shares of Rs. 10/- (Rupees Ten) each, fully paid-up.

4. The Applicant Company No. 2/Transferee Company – M/s Kolmeks (Gujarat) Manufacturing Private Limited bearing Corporate Identification No. (CIN): U28990DL2017PTC319243 was incorporated under the provisions of the Companies Act, 1956, as a public limited company vide Certificate of Incorporation dated 15.06.2017, having its registered office at Unit No.404, 4th Floor, DLF Courtyard, DLF Place, District Centre, Saket, New Delhi-110017. The Authorized Share Capital of the Applicant Company No. 2 is Rs. 2,50,00,000 (Rupees Two Crore Fifty Lakhs Only) divided into 25,00,000 (Twenty-Five Lakhs) equity shares of Rs. 10/- (Rupees Ten) each. The present issued, subscribed and paid-up share capital of the Company is Rs. 2,41,49,400/- (Rupees Two Crore Forty-One Lakhs Forty-Nine Thousand Four Hundred Only) divided into 24,14,940 (Twenty-Four Lakhs Fourteen Thousand Nine Hundred Forty) Equity shares of Rs. 10 each.

5. The Transferor Company as well as the Transferee Company have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses, as well as their last Audited Annual Accounts as on 31.03.2022 and Provisional Financial Statements for the period 01.04.2022 to 31.12.2022 of the Transferor Company.

6. The Transferor Company and Transferee Company, vide their respective meeting of the Board of Directors held on 17th January 2023 have unanimously approved the proposed Scheme of Amalgamation.

7. It has been stated that the Transferor Company and the Transferee Company had some 'Statutory and Other dues' which have either been paid in full or being provisional in nature, are not due for payment as on the date of this

Application. Certificates from Chartered Accountants confirming same has been enclosed.

8. It is pertinent to note that the consent affidavits obtained are more than the requisite statutory majority of 100% of total value required to approve the Scheme of Amalgamation in terms of the provisions of Section 230(9) of the Companies Act, 2013.

9. The Applicant Companies have further placed on record the certificate of statutory auditors regarding conformity of accounting treatment in the scheme is in consonance with Section 133 of the Companies Act, 2013.

10. The management wishes to amalgamate the Transferor Company with the Transferee Company for following benefits: -

    i) The proposed amalgamation of the Transferor Company into the Transferee Company would inter-alia result in alignment of businesses of the Transferor Company and the Transferee Company as both the Companies are in the same line of business thereby resulting in rationalization and standardization of the business processes, economies of scale, reduction in overheads, administrative, managerial and other expenditure, organizational efficiency, and optimal utilization of resources which would be beneficial for all members and other stakeholders.

    ii) It will provide significant impetus to the growth in the form of enhanced scale of operations leading to optimum utilization of various resources and infrastructure with reduction in overheads, administrative costs, managerial and other expenditure, provide holistic services, appropriate channelization of synergies, direct operational efficiencies, increased asset base and ill consolidate revenue and profitability.

iii) The amalgamation will also create a simplified corporate structure focused on capitalizing the strategic investment opportunities and providing a concentrated management focus for development of the business of the Company.

Accordingly, the proposed Scheme would be in the interest of both the Applicant Companies and their respective Shareholders, Creditors and other Stakeholders and will not be prejudicial to the interest of any concerned Stakeholder or general public at large.

11. Taking into consideration the submissions and the documents filed therewith, the following directions are issued forthwith in respect of convening/holding or dispensing with the meetings of the Shareholders, Secured and Unsecured Creditors as well as issue of notices as follows:

I. <u>In relation to the Transferor Company-1: (M/S KOLMEKS INDIA PRIVATE LIMITED)</u>

a) With respect to Equity shareholders: In view of consent affidavits from 3 equity shareholders, having 100% of voting share, convening the meeting of shareholders/members is dispensed with.

b) With respect to Secured Creditors: Since there are nil Secured Creditors, therefore the necessity of convening meeting does not arise.

c) With respect to Unsecured Creditors: Since there are nil Unsecured Creditors, therefore the necessity of convening meeting does not arise.

II. <u>In relation to the Transferee Company:(KOLMEKS (GUJARAT) MANUFACTURING PRIVATE LIMITED)</u>

a) **With respect to Equity shareholders:** In view of consent affidavits from 2 equity shareholders, having 100% voting share, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors:** In view of consent affidavits from 18 Secured Creditor, having 98.67% of voting share, convening the meeting of Secured Creditor is dispensed with.

c) **With respect to Unsecured Creditors:** Since there are nil Unsecured Creditors, therefore the necessity of convening meeting does not arise.

12. Notice of this application shall be served on the following:

i. Regional Director, Ministry of Corporate Affairs, B-2 Wing, 2 Floor, Paryawaran Bhavan, CGO Complex, New Delhi-110003;

ii. Registrar of Companies at 4th floor, IFCI Tower, 61, Nehru Place, New Delhi-110019;

iii. Official liquidator, Lok Nayak Bhavan, 8th Floor, Khan Market, New Delhi-110001;

iv. Income Tax Department, Income Tax Office, Additional Commissioner of Income Tax, Special Range 4, Central Revenue Building, IP Estate, New Delhi-110002. The notices to Income Tax Authorities shall disclose sufficient details like PAN, ward numbers and assessing officers so that timely and proper reply may be filed.

v. Any other sectoral regulators required to be served.

The application stands allowed on the aforesaid term and accordingly disposed of.

Sd/- **Sd/-**

(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

(BACHU VENKAT BALRAM DAS)
MEMBER (JUDICIAL)